

1. Access to Biological Resources and Associated Knowledge

Title: Procedure for Access to Biological Resources and Associated Knowledge

Jurisdiction: India

Category: Biodiversity / ABS

Source Citation: Biological Diversity Rules, 2024 — Rule 13(1)–(4)

Plain English Summary:

If a person covered under section 3(2) wants to access Indian biological resources or associated traditional knowledge for research, bio-survey or bio-utilisation, they must apply through the National Biodiversity Authority (NBA) portal. Commercial utilisation also requires an application, and the NBA may impose conditions including benefit sharing.

The Exact Legal Text:

“13. Procedure for access to biological resources and knowledge associated thereto. – (1) Any person, referred to in sub-section (2) of section 3 of the Act, seeking approval of the Authority for access to biological resources and knowledge associated thereto for research or for bio-survey and bio-utilisation shall make an application on the web portal of the Authority in Form 1, and for commercial utilisation shall make an application on the web portal of the Authority in Form 2.

(2) Any person, referred to in sub-section (2) of section 3 of the Act, who was in possession of a biological resource before the coming into force of the Biological Diversity (Amendment) Act, 2023, shall seek approval of the Authority for the purpose of research, commercial utilisation, bio-survey and bio-utilisation.

(3) Every application under sub-rule (1) shall be accompanied with a specified fee paid in the form of electronic transfer or digital payment to the National Biodiversity Fund.

(4) The Authority may, after consultation with the Biodiversity Management Committee either directly or through State Biodiversity Board or Union territory Biodiversity Council, and after collecting such additional information from the applicant and other sources, as required, and based on the merits of the application, may grant approval subject to terms and conditions, including benefit sharing, or reject, as deemed fit within a period of ninety days from the receipt of the application in complete form.”

Keywords/Triggers:

biological resource access, traditional knowledge access, NBA approval, commercial utilisation, bio-survey, bio-utilisation, ABS approval, benefit sharing

2. Sharing or Transfer of Research Results

Title: Approval for Sharing or Transferring Research Results

Jurisdiction: India

Category: Biodiversity / ABS / Intellectual Property

Source Citation: Biological Diversity Rules, 2024 — Rule 15(1)–(6)

Plain English Summary:

If research involving biological resources or associated traditional knowledge is shared or transferred to persons covered under section 3(2), NBA approval or registration may be required. Importantly for IP-SAKTI, **Form 6 specifically deals with using research results to obtain intellectual property rights.**

The Exact Legal Text:

“15. Procedure for seeking approval for sharing or transferring results of research to persons covered under sub-section (2) of section 3 of the Act.– (1) Any person who intends to share or transfer any result of the research relating to biological resources or traditional knowledge associated thereto to persons covered under sub-section (2) of section 3 of the Act shall make an application on the web portal of the Authority in the following Forms, namely :-

(a) Form 3 for seeking prior approval of the Authority by any person for sharing or transferring the results of research to persons covered under sub-section (2) of section 3 of the Act for commercial purposes or otherwise;

(b) Form 4 for registration by the transferee (persons covered under sub-section (2) of section 3 of the Act) to use the results of research for further research;

(c) Form 5 for seeking prior approval of the Authority to use the results of research for commercial utilisation by the transferee (persons covered under sub-section (2) of section 3 of the Act);

(d) Form 6 for seeking prior approval of the Authority to use the results of research for obtaining intellectual property rights by the transferee (persons covered under sub-section (2) of section 3 of the Act).

(2) Every application under sub-rule (1) shall be accompanied by a fee paid in an electronic transfer or digital payment form to the National Biodiversity Fund.”

Keywords/Triggers:

research result transfer, traditional knowledge transfer, Form 6, IPR approval, biological research, commercial utilisation, NBA permission, research sharing

3. Prior Approval Before Grant of Intellectual Property Rights

Title: Prior Approval Before Grant of Intellectual Property Rights

Jurisdiction: India

Category: Biodiversity / Intellectual Property / ABS

Source Citation: Biological Diversity Rules, 2024 — Rule 16(1)

Plain English Summary:

For an invention based on Indian biological resources, including **digital sequence information** or associated traditional knowledge, persons covered under section 3(2) must seek NBA approval before the competent authority grants the intellectual property right, whether the IPR is sought in India or abroad. The NBA may impose benefit-sharing conditions.

The Exact Legal Text:

“16. Procedure for registration and obtaining prior approval from Authority before grant of intellectual property rights.– (1) Procedure for seeking prior approval before grant of intellectual property rights by any person referred to in sub-section (2) of section 3 of the Act shall be as follows, namely:-

(a) Any person referred to in sub-section (2) of section 3 of the Act, applying for any intellectual property rights, in or outside India by applying on the web portal of the Authority in Form 7, for any invention based on research or information including digital sequence information on biological resource which is accessed from India, including those deposited in repositories outside India, or traditional knowledge associated thereto, shall seek prior approval of the Authority, before grant of intellectual property rights, by the competent authority in India or elsewhere;

(b) every application under clause (a) shall be accompanied with a specified fee paid in the form of electronic transfer or digital payment to the National Biodiversity Fund;

(c) the Authority shall, after collecting such additional information from the applicant and other sources as deemed appropriate, and on being satisfied with the merits of the application, take a decision on granting approval or otherwise within a period of one hundred and eighty days from the date of receipt of application or on receipt of requisite information whichever is later, subject to such terms and conditions including benefit sharing, as it may deem fit.”

Keywords/Triggers:

IPR approval, patent biological resource, Form 7, digital sequence information, traditional knowledge patent, NBA approval, benefit sharing, foreign patent

4. Registration Before Grant of IPR for Persons Covered Under Section 7

Title: Registration Before Grant of Intellectual Property Rights for Section 7 Persons

Jurisdiction: India

Category: Biodiversity / Intellectual Property / ABS

Source Citation: Biological Diversity Rules, 2024 — Rule 16(2)

Plain English Summary:

Persons covered under section 7 who apply for an IPR based on Indian biological resources, digital sequence information or associated traditional knowledge must register with the NBA before the IPR is granted. They must also notify the NBA within 45 days after the IPR is granted and undertake to obtain prior approval before commercialisation.

The Exact Legal Text:

“(2) The procedure for registration before grant of intellectual property rights by persons specified under section 7 of the Act shall be as follows, namely:-

(a) Any person specified under section 7 of the Act, who applies for any intellectual property right in or outside India, for any invention based on research or information including digital sequence information on biological resource obtained from India, including information deposited in repositories outside India, or traditional knowledge associated thereto, shall, before such intellectual property rights are granted by the competent authority in India or abroad, register in Form 8 on the web portal of the Authority;

(b) every application under clause (a) for registration with the Authority, shall be accompanied by a specified fee in the form of electronic transfer or digital payment to the National Biodiversity Fund;

(c) if the Authority is of the opinion that such an invention is the result of access to the knowledge held by a community or an individual or a group of individuals in an illegal manner, the Authority may recommend to the adjudicating officer to impose higher penalty with regard to damage and also value assessed or realised, as the case may be;

(d) the applicant shall intimate the Authority within forty five days of the grant of the intellectual property rights;

(e) the applicant at the time of registration shall give an undertaking that prior approval of the Authority will be taken before commercialisation of the intellectual property rights.”

Keywords/Triggers:

section 7 IPR, Form 8, NBA registration, patent registration, 45 days IPR grant, illegal traditional knowledge access, IPR commercialisation, benefit sharing

5. Revocation of Access or Approval

Title: Revocation of Access or Approval

Jurisdiction: India

Category: Biodiversity / Compliance / ABS

Source Citation: Biological Diversity Rules, 2024 — Rule 17(1)

Plain English Summary:

The NBA can withdraw or revoke approvals granted under Rules 13, 15, 16 and 20. This can happen when false or misleading information is provided, conditions of an agreement are violated, or revocation is necessary for public interest, environmental protection or biodiversity conservation.

The Exact Legal Text:

“17. Revocation of access or approval.- (1) The Authority may either on the basis of a complaint or suo moto withdraw the approvals granted under rules 13, 15, sub-rule(1) and (3) of rule 16 and rule 20 revoke the agreement or any part thereof, after giving a reasonable opportunity of being heard to the applicant, under the following conditions, namely: -

- (i) on the basis of reasonable belief that the person to whom the approval was granted has declared false or misleading information or violated any of the provisions of the Act or the conditions on which the approval was granted;
- (ii) when the person who has been granted approval has failed to comply with any of the terms and conditions of the agreement;
- (iii) in the larger public interest or for the protection of environment and conservation of biological diversity, or on the basis of new facts or information brought to the notice of the Authority.”

Keywords/Triggers:

approval revocation, NBA cancellation, false information, ABS violation, agreement violation, biodiversity compliance, public interest, environmental protection

6. Use of Foreign Biological Resources or Associated Traditional Knowledge in India

Title: Declaration for Use of Foreign Biological Resources and Traditional Knowledge

Jurisdiction: India

Category: Biodiversity / ABS / International

Source Citation: Biological Diversity Rules, 2024 — Rule 18(1)–(3)

Plain English Summary:

If a person uses a biological resource or associated traditional knowledge obtained from a foreign country in India for research, commercial purposes or obtaining IPR, they must submit a declaration through **Form 10**. The declaration includes information about the source country, Nagoya Protocol status, approval from the country's competent authority and patent applications.

The Exact Legal Text:

“18. Measures for monitoring and regulating the use of biological resource or associated traditional knowledge obtained from a foreign country in India.-

(1) Any person who intends to use any biological resource or associated traditional knowledge obtained from any foreign country in India for research or commercial purposes or for obtaining intellectual property rights shall submit a declaration in Form 10 on the web portal of the Authority in accordance with the provisions of section 36A of the Act.

(2) The Authority shall, in accordance with the provisions of section 36A of the Act, after obtaining relevant information from the user of such biological resource or associated traditional knowledge, notify the same on the Access and Benefit Sharing Clearing-House of the Convention on Biological Diversity.

(3) On the request of the provider country, the Authority shall take appropriate measures on such use in accordance with the provisions of section 36A of the Act.”

Keywords/Triggers:

foreign biological resource, foreign traditional knowledge, Form 10, Nagoya Protocol, ABS Clearing-House, provider country, foreign resource IPR, international ABS

7. Certificate of Origin for Cultivated Medicinal Plants

Title: Certificate of Origin for Cultivated Medicinal Plants

Jurisdiction: India

Category: Biodiversity / Medicinal Plants / ABS

Source Citation: Biological Diversity Rules, 2024 — Rule 19(1)–(5)

Plain English Summary:

A person claiming the exemption relating to cultivated medicinal plants under section 7(2) can obtain a certificate of origin from the Biodiversity Management Committee (BMC). The application records the farmer, geographical location, cultivated species, area and quantity, and the BMC is required to issue the certificate within 15 days based on the prescribed requirements.

The Exact Legal Text:

“19. Procedure for obtaining certificate of origin for cultivated medicinal plants.- (1) Any person specified under section 7 of the Act, who intends to claim exemption under sub-section (2) of section 7 for access to cultivated medicinal plants, shall submit a self-declaration physically or digitally in Form 11 to obtain certificate of origin from the concerned Biodiversity Management Committee.

(2) The self-declaration referred to in sub-rule (1) shall contain the name and address of the applicant and farmer, geographical location including survey number, extent of area under

cultivation, details of species and their parts being cultivated and details including estimated quantity of biological resources being used.

(3) The specified fee paid in electronic form shall accompany the application. The amount may be deposited in the local Biodiversity Fund by electronic transfer or digital payment.

(4) The Biodiversity Management Committee, based on the application submitted by the applicant including details of cultivation and post-harvest details of medicinal plants and entries made in the books maintained in Form 12, shall issue the certificate of origin of cultivated medicinal plants specified under sub-section (3) of section 7 of the Act and sub-rule (1), within a period of fifteen days.”

Keywords/Triggers:

cultivated medicinal plants, certificate of origin, Form 11, BMC certificate, section 7 exemption, medicinal plant cultivation, farmer details, biodiversity fund

8. Sending Biological Resources Outside India for Non-Commercial Research

Title: Sending Biological Resources Outside India for Non-Commercial Research

Jurisdiction: India

Category: Biodiversity / Research / International

Source Citation: Biological Diversity Rules, 2024 — Rule 20(1)–(4)

Plain English Summary:

Indian researchers or institutions intending to send or carry biological resources outside India for non-commercial research or emergency research must apply to the NBA using **Form 13**. If associated traditional knowledge is also transferred, approval under Rule 13 is required, and voucher samples may need to be deposited before the biological resources are sent outside India.

The Exact Legal Text:

“20. Procedure for research outside India for non-commercial research or emergency purposes by Indian researcher or institution.- (1) Any Indian researcher or institution intending to carry or send biological resource outside India for conducting non-commercial research including undertaking studies essential to deal with certain present or imminent emergency situations such as epidemics, shall apply in Form 13 on the web portal of the Authority:

Provided that where associated traditional knowledge is also proposed to be transferred or carried along with the biological resources, the foreign institution concerned shall obtain approval of the Authority under rule 13.

(2) Every application under sub-rule (1) shall be accompanied with the specified fee paid in the form of electronic transfer or digital payment to the National Biodiversity Fund.

(3) The Authority shall, on being satisfied with the application under sub-rule (1), grant its approval within a period of forty-five days from the date of receipt of the application.

(4) On obtaining approval of the Authority under sub-rule (3), the applicant shall, before carrying or sending the biological resources outside India, wherever required, deposit voucher samples in the specified national repositories and endorse a copy of the proof of such deposit to the Authority.”

Keywords/Triggers:

biological resource export, Form 13, research outside India, non-commercial research, emergency research, voucher sample, foreign institution, traditional knowledge transfer